FITNESS CLUB MEMBERSHIP AGREEMENT

IronPeak Fitness Holdings, Inc. | Form IPF-MA-2026 (Rev. 03/26)

This Membership Agreement (the "Agreement") is made as of the Enrollment Date shown on the Member Enrollment Form between IronPeak Fitness Holdings, Inc., a Georgia corporation with its principal offices at 1180 Peachtree Commons Drive, Suite 400, Atlanta, Georgia 30309 (together with its affiliates, franchisees, successors, and assigns, the "Club"), and the person(s) identified on the Member Enrollment Form (the "Member"). By signing, electronically accepting, tapping a membership card, or using any Club facility, Member acknowledges that Member has read, understood, and agreed to be bound by this Agreement, including the Liability Waiver and the Arbitration Agreement contained herein.

ARTICLE I – DEFINITIONS

1.1 Defined Terms. As used herein: (a) "Home Club" means the Club location designated on the Member Enrollment Form; (b) "Facilities" means the equipment, studios, pools, locker rooms, and amenities at any Club location; (c) "Initial Term" has the meaning given in Clause 2.2; (d) "Renewal Term" has the meaning given in Clause 3.1; and (e) "Monthly Dues" means the recurring membership charge stated in Clause 2.3, as adjusted pursuant to this Agreement.

1.2 Interpretation. Headings are for convenience only. The words "including" and "includes" mean "including without limitation." This Agreement shall not be construed against the Club by reason of the Club having drafted it.

1.3 Incorporated Policies. The Club Rules and Regulations, the Guest Policy, the Freeze Policy, and the Privacy and Biometric Data Notice, each as amended from time to time and posted at the Home Club or on the Club website, are incorporated by reference.

ARTICLE II – MEMBERSHIP, TERM, AND FEES

2.1 Grant of Membership. Subject to Member's compliance with this Agreement, the Club grants Member a revocable, non-transferable license to use the Facilities during posted hours. The Club may modify hours, equipment, classes, amenities, and staffing at any time without notice or liability, and no such change shall entitle Member to any reduction of fees.

2.2 Initial Term. This Agreement commences on the Enrollment Date and continues for a minimum commitment period of twenty-four (24) consecutive months (the "Initial Term"). Member acknowledges that the Initial Term is a material inducement for the Club's offering of the promotional Monthly Dues rate.

2.3 Monthly Dues. During the Initial Term, Member shall pay Monthly Dues of twenty-nine dollars and ninety-nine cents ($29.99), plus applicable taxes, drafted automatically on or about the first day of each month.

2.4 Enrollment Fee. Upon execution of this Agreement, Member shall pay a one-time enrollment and membership processing fee of ninety-nine dollars ($99.00) (the "Enrollment Fee"). The Enrollment Fee is fully earned upon execution and IS NON-REFUNDABLE IN ALL CIRCUMSTANCES, including cancellation by Member during any rescission or "cooling-off" period, except to the extent such refund is required by non-waivable applicable law.

2.5 Annual Facility Enhancement Fee. On the first day of June of each year during the Initial Term and any Renewal Term, the Club shall charge Member an annual facility enhancement fee of fifty-nine dollars ($59.00) (the "Annual Fee"), which is separate from and in addition to the Monthly Dues, is non-prorated, and is non-refundable.

2.6 Other Charges. Member shall also pay: (a) a late fee of $15.00 for any payment not received within five (5) days of its due date; (b) a returned payment fee of $30.00 per failed transaction; (c) a replacement key tag fee of $10.00; (d) a monthly freeze administration fee of $10.00 for any period during which Member's account is frozen pursuant to the Freeze Policy; and (e) a collection fee of up to thirty-three percent (33%) of any delinquent balance referred to a collection agency.

2.7 Authorization to Charge. Member authorizes the Club to charge the payment method on file for all amounts due hereunder, including recurring and ad hoc charges, and agrees to maintain current payment information. If a payment method is declined, Member authorizes the Club to attempt the charge on any other payment method on file.

ARTICLE III – AUTOMATIC RENEWAL AND FEE ADJUSTMENTS

3.1 Automatic Renewal. Upon expiration of the Initial Term, this Agreement shall automatically renew for successive twelve (12) month periods (each, a "Renewal Term") unless Member terminates in accordance with Clause 5.1. Automatic renewal occurs without additional notice to Member, and each Renewal Term is subject to all terms of this Agreement.

3.2 Renewal Rate Adjustment. Effective on the first day of each Renewal Term, the Monthly Dues shall increase by six dollars ($6.00) per month over the Monthly Dues in effect during the immediately preceding term. Member acknowledges that this adjustment is a bargained-for element of the pricing structure and does not constitute a unilateral modification requiring separate notice or consent.

3.3 Other Fee Changes. The Club may increase the Annual Fee or any other fee or surcharge upon thirty (30) days' notice by posting at the Home Club, bill message, or email. Member's continued use of the Facilities or failure to cancel in accordance with Clause 5.1 constitutes acceptance of any such change.

ARTICLE IV – USE OF FACILITIES; MEMBER CONDUCT

4.1 Rules of Conduct. Member shall comply with all posted rules and the reasonable instructions of Club staff. The Club may suspend or terminate Member's privileges, without refund and without relieving Member of any payment obligation, for any conduct the Club determines in its sole discretion to be disruptive, unsafe, or contrary to the Club's interests.

4.2 Guests and Minors. Member is responsible for the conduct of any guest and for any fee, damage, or injury arising from a guest's presence. Persons under eighteen (18) years of age may use the Facilities only as permitted by the Club Rules and under the supervision of a parent or guardian.

4.3 Personal Property. The Club is not responsible for lost, stolen, or damaged personal property, whether or not stored in a locker. Member uses lockers and parking areas at Member's own risk.

4.4 Freeze Policy. Member may request a freeze of the account for up to three (3) consecutive months per calendar year by written request to the Home Club, subject to the freeze administration fee in Clause 2.6(d). A freeze does not shorten or suspend the Initial Term or any Renewal Term unless the Club expressly agrees in writing.

ARTICLE V – CANCELLATION AND TERMINATION

5.1 Notice of Non-Renewal. To prevent automatic renewal under Clause 3.1, Member must give written notice of non-renewal not less than forty-five (45) days before the last day of the then-current Initial Term or Renewal Term. Notice shall be effective only if (a) submitted on the Club's official Cancellation Form, which is available solely in person from the General Manager of the Home Club during staffed business hours, and (b) sent by certified United States mail, return receipt requested, to the Club's Member Records Department at the address stated in the preamble. Notice given by telephone, email, online portal, mobile application, or to any Club employee is of no force or effect. Notice received fewer than forty-five (45) days before the end of the term is untimely, and the Agreement shall renew for a full Renewal Term.

5.2 Early Termination Fee. If this Agreement is terminated for any reason before the expiration of the Initial Term, including termination by Member for convenience, relocation, injury, illness, or loss of employment, or termination by the Club for Member's default or misconduct, Member shall pay, as liquidated damages and not as a penalty, an early termination fee equal to the greater of (a) three hundred fifty dollars ($350.00) or (b) fifty percent (50%) of the aggregate Monthly Dues that would have become due for the remainder of the Initial Term (the "Early Termination Fee"). The Early Termination Fee is due immediately and may be charged to any payment method on file. Termination during a Renewal Term shall likewise be subject to an Early Termination Fee, which shall be calculated on the remaining months of that Renewal Term and shall in no event be less than $350.00.

5.3 Accrued Amounts. Termination does not relieve Member of any amount accrued before the effective date of termination, including the Annual Fee for the contract year in which termination occurs, which shall not be prorated.

5.4 Survival. Clauses 2.4, 2.5, 5.2, 5.3 and Articles VI through X survive termination or expiration of this Agreement.

ARTICLE VI – REFUNDS AND PREPAID AMOUNTS

6.1 Prepaid Amounts Non-Refundable. All amounts paid in advance, including Monthly Dues, the Annual Fee, personal training packages, and the Enrollment Fee, are strictly non-refundable and shall not be prorated or credited upon cancellation, suspension, freeze, downgrade, or cessation of use for any reason.

6.2 Limited Exception. Notwithstanding Clause 6.1, the Club shall refund the unused portion of prepaid Monthly Dues solely if (a) the Home Club permanently closes and the Club operates no other location within fifteen (15) miles of the Member's residential address on the Enrollment Date, and (b) Member submits a written refund request by certified mail within thirty (30) days after the closure date. No other circumstance, including relocation, disability, medical condition, dissatisfaction, or loss of Facilities or amenities, shall entitle Member to any refund or credit.

ARTICLE VII – ASSUMPTION OF RISK; LIABILITY WAIVER; LIMITATIONS

7.1 Assumption of Risk. Member acknowledges that physical exercise involves inherent risks of injury, including serious injury, illness, or death, and voluntarily assumes all such risks. Member represents that Member is physically fit and has consulted a physician as appropriate before using the Facilities.

7.2 Release and Waiver. TO THE FULLEST EXTENT PERMITTED BY LAW, MEMBER RELEASES AND DISCHARGES THE CLUB, ITS OFFICERS, EMPLOYEES, CONTRACTORS, AND LANDLORDS FROM ANY AND ALL CLAIMS FOR INJURY, DEATH, OR PROPERTY DAMAGE ARISING FROM USE OF THE FACILITIES, INCLUDING CLAIMS ARISING FROM THE CLUB'S OWN NEGLIGENCE.

7.3 Disclaimer of Warranties. THE FACILITIES AND SERVICES ARE PROVIDED "AS IS" AND "AS AVAILABLE." THE CLUB DISCLAIMS ALL WARRANTIES, EXPRESS OR IMPLIED, INCLUDING IMPLIED WARRANTIES OF MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE.

7.4 Limitation of Liability. IN NO EVENT SHALL THE CLUB'S AGGREGATE LIABILITY TO MEMBER EXCEED THE TOTAL MONTHLY DUES PAID BY MEMBER DURING THE THREE (3) MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM. THE CLUB SHALL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, OR PUNITIVE DAMAGES.

7.5 Indemnification. Member shall indemnify and hold harmless the Club from any third-party claim arising from Member's or Member's guest's conduct or breach of this Agreement.

ARTICLE VIII – DATA, PRIVACY, AND COMMUNICATIONS

8.1 Collection of Data. Member consents to the Club's collection and retention of check-in records, facial-recognition and fingerprint templates, workout and wearable-device data, video surveillance footage, and payment information.

8.2 Sharing of Data. Member authorizes the Club to share personal information and usage data with its affiliates, franchisees, marketing partners, insurance carriers, wellness-program sponsors, data brokers, and analytics providers for purposes including advertising, risk scoring, and product development. The Club may de-identify and aggregate such data and use or sell it without restriction. Member may request limits on certain sharing through the process described in the Privacy and Biometric Data Notice, to the extent required by applicable law.

8.3 Consent to Contact. Member consents to receive calls, texts, prerecorded messages, and emails from the Club and its partners at any number or address provided, including by automated dialing system, for servicing, billing, and promotional purposes. Consent is not a condition of purchase.

8.4 Photography and Likeness. Member grants the Club a perpetual, royalty-free license to use Member's image and likeness captured on Club premises in advertising and promotional materials without compensation.

ARTICLE IX – DISPUTE RESOLUTION

9.1 Mandatory Binding Arbitration. Any dispute, claim, or controversy arising out of or relating to this Agreement or the Member's use of the Facilities shall be resolved exclusively by final and binding arbitration administered by JAMS under its Streamlined Arbitration Rules. The arbitration shall be conducted in Fulton County, Georgia, unless otherwise required by law.

9.2 Class Action and Jury Waiver. MEMBER AND THE CLUB EACH WAIVE THE RIGHT TO A JURY TRIAL AND THE RIGHT TO PARTICIPATE IN ANY CLASS, COLLECTIVE, OR REPRESENTATIVE PROCEEDING. The arbitrator has no authority to preside over any class or representative proceeding.

9.3 Limitation Period; Fees. Any claim by Member must be brought within one (1) year after it accrues or it is permanently barred. Each party bears its own attorneys' fees, except that the arbitrator may award the Club its fees if a Member claim is found to be frivolous.

9.4 Collection Actions. Nothing herein prevents the Club from bringing an action in any court of competent jurisdiction to collect unpaid amounts or seek injunctive relief.

ARTICLE X – GENERAL PROVISIONS

10.1 Force Majeure. The Club shall not be liable for any delay, closure, or failure of performance caused by events beyond its reasonable control, including acts of God, fire, flood, severe weather, pandemic, epidemic, war, terrorism, labor disputes, governmental orders, utility failure, or cyberattack. Member's payment obligations shall not be suspended or abated during any such event.

10.2 Severability. If any provision of this Agreement is held invalid or unenforceable, it shall be enforced to the maximum extent permissible and the remaining provisions shall remain in full force and effect.

10.3 Assignment. The Club may assign this Agreement to any third party, including a financing company, without notice to or consent of Member, and the assignee may enforce all payment obligations free of any defense Member may have against the Club. Member may not assign or transfer this membership.

10.4 Governing Law. This Agreement is governed by the laws of the State of Georgia without regard to conflict-of-law principles, and by the Federal Arbitration Act with respect to Article IX.

10.5 Amendments. The Club may amend this Agreement or the Club Rules by posting revised terms at the Home Club or on its website; continued use of the Facilities constitutes acceptance. No modification by Member is effective unless signed by an authorized Club officer.

10.6 Entire Agreement. This Agreement and the incorporated policies constitute the entire agreement between the parties and supersede all prior or contemporaneous oral or written statements, including statements by sales personnel and promotional materials.

10.7 Electronic Signature. This Agreement may be executed electronically, and an electronic signature shall be deemed an original.

ACKNOWLEDGED AND AGREED:

IRONPEAK FITNESS HOLDINGS, INC.

By: _____

Name: Marcus D. Whitfield Title: Director, Membership Contracts

Date: _____

MEMBER

Signature: _____

Printed Name: _____

Home Club: _____ Date: _____